



**Apiam – Seymour Equine Clinic**

MN-95040

# **Phase 1 Determination**

**Acquisition may be put into effect**

2 October 2026

# 1. Determination and statement of reasons

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| <b>Notified acquisition</b>        | AAH Veterinary Services Pty Ltd ( <b>AAH</b> )’s proposed acquisition of 100% of the business and business assets of Seymour Equine Clinic ( <b>Seymour Equine Clinic</b> ) (the <b>Acquisition</b> ).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>Determination</b>               | The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>Parties to the Acquisition</b>  | <p>The acquirer, AAH, is a wholly owned subsidiary of Apiam Animal Health Limited (<b>Apiam</b>). Apiam is a rural veterinary business, comprising more than 80 veterinary clinics and ancillary business sites across Australia. Apiam supplies a range of veterinary services, including companion animal, equine, dairy, beef cattle, sheep and goat, pig, poultry and mixed animal veterinary services, together with veterinary diagnostics, emergency and after-hours services, reproductive and herd health services. Apiam also supplies pathology, laboratory and advisory services. Apiam is ultimately owned and controlled by funds managed and advised by Adamantem Capital Management.</p> <p>The target, Seymour Equine Clinic, is located in Seymour, approximately 100km north of Melbourne, Victoria. It is an equine veterinary clinic and hospital which primarily supplies equine veterinary services, including ambulatory and hospital-based clinical care, 24-hour emergency and critical care, reproductive medicine and breeding management, and related ancillary services. These include in-house pathology, export examinations and health certifications, and behavioural and welfare assessments.</p> |
| <b>Overlap between the Parties</b> | <p>Apiam and Seymour Equine Clinic (the <b>Parties</b>) overlap in the supply of equine veterinary services, comprising ambulatory services where the veterinarian travels to the horse to provide general equine veterinary care, as well as hospital-based clinical, emergency, reproductive, diagnostic and related equine veterinary care.</p> <p>Apiam’s nearest equine veterinary practices to Seymour Equine Clinic are the Victorian Equine Group practices, Lancefield Equine Clinic in Lancefield and Bendigo Equine Hospital in Bendigo. Apiam has also entered into an agreement to acquire the Goulburn Valley Equine Hospital in Shepparton.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <b>Reasons for determination</b>   | <p>When making a determination in Phase 1, the Australian Competition and Consumer Commission (<b>ACCC</b>) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the <b>Act</b>). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers.</p> <p>For more information about the ACCC’s approach to considering notified acquisitions, see the ACCC’s <a href="#">merger assessment guidelines</a> and <a href="#">interim merger process guidelines</a>.</p> <p>In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the</p>                                                                                                                                                                                                                                                                                                                                                               |

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|                                | <p>notification form, information from third parties, and publicly available information.</p> <p>The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC found that the Parties do not compete closely in the supply of equine veterinary services including due to the distance of the Apiam locations from Seymour Equine Clinic and the limited overlap in the geographic areas serviced by the clinics.</p> <p>The ACCC notes that some third parties raised concerns about the potential for increased prices and/or decreased service quality as a result of corporate ownership of Seymour Equine Clinic. However, these concerns did not relate to the likely competitive effects of the Acquisition.</p> |
| <b>Applications for review</b> | <p>A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.</p>                                                                                                                                                                                                                                                                                                                                                                  |

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)  
of the Act**